

# THE FEDERALIST

## No. 49

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### Historical Context, Authorship & Legacy

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*Origin of the campaign · Purpose of the essays*  
*Initial reception · The authorship question*  
*Lasting influence on the United States*

*Compiled from the historical record*



## 1. Who Initiated the Campaign

Alexander Hamilton initiated the Federalist Papers. In the fall of 1787, after the Constitutional Convention had finished its work and strong opposition to the proposed Constitution appeared in New York, Hamilton decided that a sustained public defense was required. He planned a series of newspaper essays and recruited James Madison and John Jay to write with him under the shared pen name “Publius.”

## 2. Purpose of the Federalist Papers

The primary purpose was practical and immediate: to persuade the people of New York to ratify the Constitution.

New York was large, wealthy, and strategically located. Its political leadership and public opinion were deeply divided. Without New York’s agreement, the new national government would have been severely weakened.

The deeper purpose was to explain and defend the design of the new government—its structure, powers, limits, and the reasoning behind them—against the strongest criticisms of the day. The essays systematically addressed the weaknesses of the Articles of Confederation, the problem of faction, the need for energy in the executive, the value of an independent judiciary, the system of checks and balances, and the relationship between the national government and the states.

## 3. What Benefit the Authors Sought—and Received

Hamilton, Madison, and Jay believed the Articles of Confederation were too weak to hold the country together, protect it, or manage its debts and commerce. They saw the new Constitution as necessary for the survival and strength of the United States. The benefit they sought was therefore the adoption of the Constitution and the creation of a workable national government.

What they actually received:

- New York ratified the Constitution on July 26, 1788, by a narrow vote of 30–27.
- The Constitution went into effect.
- Hamilton became the first Secretary of the Treasury and the leading figure in Washington’s administration.
- Madison became a leading member of the new Congress and later President of the United States.
- Jay became the first Chief Justice of the United States.

Their longer-term benefit was intellectual and historical: the Federalist Papers became the most influential early explanation of the Constitution, giving their arguments lasting authority in American law and political thought.

## 4. Initial Reception of Federalist No. 49

Federalist No. 49 was first published on February 5, 1788, in *The New York Packet*. Like all the essays, it was signed only “Publius.”



The immediate audience was the people of New York State—especially the educated readers, merchants, lawyers, and political figures who would influence or serve as delegates in New York’s ratifying convention. The essays were taken seriously by the political class following the ratification debates. They were not mass popular reading; newspaper circulation was limited and the writing was dense. Federalists treated them as strong arguments. Anti-Federalists read them carefully and sometimes replied to specific points. There is no record of Federalist No. 49 causing special controversy on its own; it was one solid piece in a long series.

## 5. How the Essays Became a Lasting Document

The newspaper versions were temporary. What made *The Federalist* permanent was the book edition. In 1788 the New York printers J. and A. McLean collected the essays and published them in two volumes under the title *The Federalist*. Hamilton oversaw the book version and made some revisions and corrections. Once the essays existed as a bound book rather than scattered newspaper columns, they could be bought, shared, cited, and preserved. Over the following decades the book circulated among lawyers, judges, politicians, and students of government. By the nineteenth century it had become the most important early commentary on the Constitution.

## 6. Why Authorship Remained Uncertain

Hamilton oversaw the 1788 book edition, yet that fact did not settle who wrote each essay. In both the original newspapers and the McLean volumes, every essay was still signed only “Publius.” No individual names were attached to specific papers.

The authorship debate arose later for two main reasons. First, shortly before his death in 1804, Hamilton gave a private list to a friend in which he claimed a large number of the disputed essays (including many now attributed to Madison). Madison later stated that he had written the ones scholars now assign to him. Because both men made opposing claims after the fact, uncertainty remained. Second, the original publications and the 1788 book never listed individual authors. Later generations therefore had only the conflicting statements of Hamilton and Madison to go on. That is why early editions continued to mark certain essays “Hamilton or Madison.”

Modern scholarship, based on historical claims, stylistic analysis, and computational study, attributes Federalist Nos. 49–58 firmly to James Madison. The old label is retained mainly as a historical marker.

## 7. Lasting Effect on the United States

The lasting influence of the Federalist Papers has been far greater than their original campaign purpose.

They became the most important early commentary on the meaning of the Constitution. Because Hamilton and Madison had been central figures at the Convention, later generations treated the essays as unusually authoritative evidence of the framers’ intentions. The Supreme Court has cited them for more than two centuries when interpreting the Constitution. They appear in major cases involving federal power, separation of powers, the judiciary, and the nature of the Union.



They shaped American political thought on core subjects: the danger of faction, the need for checks and balances, the value of an extended republic, the role of an independent judiciary, and the proper balance between national and state authority. They remain foundational texts in American education, law, and political debate.

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*The people are the only legitimate fountain of power.*